TENANCY AGREEMENT

This Agreement made on the _____day of _____ 20____

BETWEEN

_____

(hereinafter called “The Landlord” which expression where the context so admits shall include its successors-in-title and assigns) of the one part

AND

_____

(hereinafter called “The Tenant” which expression where the context so admits shall include legal representatives or its successors in title and permitted assigns of the Tenant) of the other part.

Now it is hereby agreed and declared as follows: -

1. Letting of the Premises

The Landlord agrees to let and the Tenant agrees to take all that premises situated and known as ___

_____

(hereinafter called “the Premises”) together with the furniture, fixtures and other effects therein as listed in the Inventory attached ("the Effects") for a period of _____( ) months from _____( ) day of _____ 20____ to the_____( ) day of _____ 20____.

2. Rent

The Tenant agrees with the Landlord to pay in advance on the_____( ) of each calendar month a sum of Singapore Dollars _____

_____

(S$_____) without any deduction whatsoever (hereinafter called "the Rent").

Payments can be made via *cheque/PayNow/bank transfer to the below account:

Account Name: _____

Name of Bank: _____

Account No.: _____

Please Initial	
Landlord	Tenant

This payment is to be made either by way of standing instructions or should the Tenant choose to pay via cheque, the Tenant must bank in cheque so that the funds are deposited into the Landlord's account by the _____ of the month.

3. The Tenant will pay to the Landlord the sum of Singapore Dollars _____ _____ (S$ _____) which is equivalent to ___ ___( ) month(s) rental on or before the signing of this Agreement hereof to be held by the Landlord as security for the due performance and observance of the stipulations and agreements hereinafter contained provided that upon the expiration of the tenancy granted if the Tenant shall have duly performed and observed the stipulations and agreements the said sum shall be repaid without interest to the Tenant but otherwise the same or part thereof shall be used by the Landlord to offset any payments owing by the Tenant without prejudice to the right of the Landlord to recover all monies which may become due or payable by the Tenant under this Agreement. The balance thereof to be returned to the Tenant immediately but in any event not later than **FOURTEEN (14) DAYS from the expiration or sooner determination of the tenancy stated herein.**

SECURITY DEPOSIT

4. Tenant's Covenants

The Tenant hereby covenants with the Landlord as follows:

a) To pay the said rent at the times and in the manner aforesaid without any deduction whatsoever.

RENT

b) Not to do or suffer or permit to be done anything whereby the policy or policies of insurance in respect of the said Premises or any part thereof against loss or damage by fire may become void or voidable or whereby the rate of premium thereon may be increased and to repay the Landlord all sums paid by way of increased premiums and all expenses incurred by them in or about the renewal of such policy or policies rendered necessary by a breach of this Agreement.

LESSEE NOT TO VOID INSURANCE

c) At its own cost and expense to keep the interior of the Premises including the sanitary installations, fixtures and fittings in good and tenantable repair and condition, fair wear and tear excepted, throughout the term and to replace the same with new ones if damaged, lost or broken and to yield up the same in good order and condition at the termination of the tenancy and furthermore to keep the Premises in good, clean and habitable order and condition.

REPAIR OF THE PREMISES

d) To provide and replace LED light fittings, parts, electric bulbs and tubes at its own expense.

REPLACEMENT OF ELECTRIC BULBS, ETC

e) To take up a quarterly service contract with an air-conditioner maintenance contractor for the general maintenance and gas-top ups (if required) for all air-condition units in the said Premises of the duration of the said term. Any reasonable repair and chemical wash for air-conditioner breakdown, not arising from the misuse or neglect of the Tenant will be at the Landlord's expense. This service contract is to be forwarded to the Landlord within the 1st three months of stay. All the quarterly service memos are to be kept in file by the Tenant and passed on to the Landlord when the Tenant hands over the property back to the Landlord. Any failure to service the aircons quarterly by the Tenants will void the Landlord's responsibilities towards the tenants with regards to the aircons under this tenancy agreement. It shall also be lawful for the Landlord to undertake any required air-con servicing, repairs or replacement of air-con parts and/or units and claim such expenses against the Tenant. If the Landlord has not been reimbursed for such expenses owed to him during the lease, it shall be lawful for the Landlord to deduct such amounts from the Security Deposit.

SERVICE OF AIR - CONDITIONERS

Please Initial	
Landlord	Tenant

f) To be responsible for all non-structural repairs and routine maintenance of the apartment not exceeding a total sum of Singapore Dollars _____ (S$_____) per item per job. Any expenditure exceeding Singapore Dollars _____ (S$_____), the excess shall be borne by Landlord. The Landlord's consent is to be obtained for any repair cost that exceeds S$_____ before proceeding with repairs. This will be effective after 30 days from commencement date of lease, prior to that the Landlord will have to attend to all repairs at Landlord's expense If the repairs or replacement is necessitated due to the Tenant's negligence at any time during the lease, whether within the 30 days of commencement date or after, all such repair or replacement cost shall be borne in full by the Tenant. REPAIRS

g) To permit the Landlord and the Landlord's agents, surveyors and workmen with all necessary appliances to enter upon the said Premises at all reasonable times by prior appointment with the Tenant for the purpose either of viewing the condition thereof or of doing such works and things as may be required for any repairs, alteration or improvement of the said Premises. ACCESS TO PREMISES FOR REPAIR WORK

h) Not to carry out or permit or suffer to be carried out alterations, additions or any changes of whatsoever nature to the Premises without first having obtained the consent in writing of the Landlord. NO UNAUTHORISED ALTERNATIONS ETC

i) Not to hack any holes or drive anything whatsoever into the walls or to bore any holes in the ceiling without first having obtained the consent in writing of the Landlord except anything reasonably done to hang pictures, paintings and the like. NOT TO HACK HOLES ETC

j) Not to do or permit to be done anything on the said Premises which shall be become a nuisance or annoyance or cause injury to the Landlord or to the inhabitants of the neighbouring Premises not to carry out any activity on the Premises of an unlawful or illegal nature of constituting an offence or being in contravention of any statue or law of the country. NOT TO CAUSE NUISANCE AND INJURY

k) Not to assign, sublet or otherwise part with the possession of the said Premises or any part thereof or the furniture and fittings or any part thereof, provided that in the case of the Tenant being a limited company, this prohibition shall not prevent the occupation of the said Premises by a bona fide employee of the Tenant. NO SUBLETTING

l) To use the Premises for private dwelling only and not for any immoral or illegal or other purposes. PERMITTED USE OF THE PREMISES

m) To permit only occupants those are registered herein to occupy the Premises. The Tenant must produce original of documents such as NRIC/passport/work permit/employment pass/student pass to prove his/her legal stay in Singapore to the Landlord. REGISTERED OCCUPANTS

n) To apply and pay all rates, taxes, levies, fees, charges and other outgoings on water, sewerage, sanitation, electricity, gas, telephone, cable television and other services imposed on, charged or payable upon or in respect of the said Premises. PAY ALL RATES ETC

Please Initial	
Landlord	Tenant

o) Not to keep or permit to be kept on the said Premises or any part thereof any materials or a dangerous, explosive or radioactive nature or the keeping of which may contravene any local statute or regulations or bye-law or in respect of which an increased rate of insurance is usually or any actually be required or the keeping of which may cause the fire policy in respect thereof to become null and void.

PROHIBITION AGAINST STORAGE

p) Not to erect or put up any sign board on the Premises without the Landlord's written consent.

NO ERECTING OF SIGN BOARD

q) At the expiration of the Tenancy to peaceably and quietly deliver up to the Landlord the said Premises in like condition as if the same were delivered to the Tenant at the commencement of this Agreement, fair wear and tear & acts of God excepted provided that the Tenant shall take all reasonable measure to ensure that any damages, defect or dilapidation which has been or at any time shall be occasioned by fair wear and tear shall not give rise to or cause or contribute to any substantial damage to the Premises. All curtains to be dry-cleaned and re-hung. A dry-cleaning receipt is to be provided on handover day. All nails or hooks in walls are to be removed and the affected walls are to be repainted and restored to original condition. The property, including all cabinets, wardrobes and appliances, must be thoroughly cleaned prior to handover day.

YIELDING UP OF PREMISES

All rectification work and service receipts for the proper handover of the property shall be submitted upon the handover of the unit, otherwise **$500.00** or **20%** of the monthly rental of S$ _____ whichever is higher, will be charged by Landlord to recover its agent's service charge incurred for additional services rendered in the operational management of the Premises.

r) If the Tenant is in breach of any clause and/or terminates this tenancy prematurely, then the Tenant shall in any event reimburse the Landlord on a pro rata basis the commission the Landlord has paid to **SRI PTE LTD** for the remaining unfulfilled term

REIMBURSE COMMISSION IF EARLY TERMINATION

s) To indemnify and keep indemnified the Landlord from and against:

LOSS & DAMAGE TO THE PREMISES

(i) All loss and damage to the Premises caused by the Tenant, Tenant's family, Tenant's employees, occupiers or visitors and in particular but without limited the generality of the foregoing caused by the use or misuse of waste or abuse of water, electricity or faulty fittings or fixtures of the Tenant.

(ii) All claims demands writs, summonses and action suits proceedings judgments to the property orders decrees damages cost losses and expenses of any nature whatsoever which the Landlord may suffer or incur in connection with loss of life, personal injury and/or damage to the property arising from or out of any occurrence in, upon or at the Premises or the use of the Premises or any part thereof by the Tenant, Tenant's family or by any of the Tenant's employees or visitors; unless the same shall have been occasioned by the negligence of the Landlord its employees, servants, agents or contractors.

Please Initial	
Landlord	Tenant

t) The landlord shall not be liable or in any way responsible to the Tenant, Tenant's family or to any of the Tenant's employees or visitors or to any other persons for any injury loss or damage which may be suffered or sustained to any property or by any person in connection with the Premises and services or amenities enjoyed therewith howsoever occurring unless the same shall have been occasioned by the negligence of the Landlord its employees, servants, agents or contractors. RESPONSIBILITY OF INJURY

u) To comply and conform at all times and in all respects during the continuance of this agreement with the provisions of all laws, acts, enactments and ordinances and rules, regulations, by-laws, orders and notice made thereunder by the Singapore government or any other competent authority and to indemnify the Landlord of all fines, impositions or penalties due to any default or non-compliance of the Tenant. COMPLIANCE WITH LAW AND RULES

v) To permit persons with authority from the Landlord at all reasonable times by prior appointment to enter and view the Premises for the purpose of taking a new tenant during **TWO (2) CALENDAR MONTHS** immediately preceding the termination of the tenancy. ACCESS TO PREMISES – NEW TENANT

w) To permit persons with authority from the Landlord at all reasonable times by prior appointment to enter and view the Premises whenever the Landlord wants to sell the Premises. ACCESS TO PREMISES – POTENTIAL PURCHASER

x) To be responsible for housekeeping and pest control in the property. PEST CONTROL

y) Not to keep pets, e.g., cats and dogs, without the expressed written permission of the owner. PETS POLICY

z) To be responsible for maintaining the garden (trees, plants, grass), if any. GARDENING

5. Landlord's Covenants

The Landlord hereby covenants with the Tenant as follows:

a) The Tenant paying the rents hereby reserved and performing and observing the several covenants and stipulations herein contained shall peacefully hold and enjoy the Premises during the term without any interruption by the Landlord or any person rightfully claiming under or in trust for the Landlord. QUIET ENJOYMENT

b) All property taxes, rates and assessments which are or may hereafter be charges or impose on the Premises are payable by the Landlord. PAYMENT OF PROPERTY TAX

c) To keep the roof, ceiling, main structure, walls, floors, wiring and pipes of the Premises in good and tenantable repair and condition (fair wear and tear excepted). KEEP PREMISES IN GOOD REPAIR

d) To insure the said Premises against loss or damage by fire and to pay the necessary premium punctually. FIRE INSURANCE

e) To supply the items as stipulated in the Letter of Intent and to comply with the other covenants in the said letter dated _____ 202___, on or before handover of the said Premises to the Tenant. LETTER OF INTENT

Please Initial	
Landlord	Tenant

PROVIDED always and it is hereby agreed as follows:

6. Other Terms

a) If the rent hereby reserved or any part thereof shall be unpaid for seven (7) days after becoming payable (whether formally demanded or not) or if the Tenant shall at anytime fail or neglect to perform or observe any of the obligations, stipulations and agreements herein contained on its part to be performed or observed or if any condition or stipulation entered into between the parties hereto shall not be so performed or if the Tenant or any other person in whom for the time being the tenancy shall be vested shall become bankrupt or enter into composition with the Tenant's creditors or suffer any distress or execution to be levied on the Tenant's goods or if the Tenant being a company shall go into liquidation whether voluntary (save for the purpose of amalgamation or reconstruction) or compulsory then and in any of the said cases it shall be lawful for the Landlord to forfeit the security deposit and to, at any time thereafter, re-enter upon the Premises or any part thereof in the name of the whole to repossess the Premises and thereupon this tenancy shall absolutely determine but without prejudice to the right of action of the Landlord in respect of any antecedent breach of this Agreement by the Tenant. It shall also be lawful for the Landlord to remove all Tenant's belongings from the Premises and the Landlord shall not be liable for any loss or damage as such.

DEFAULT OF LESSEE

b) In the event of the rent remaining unpaid for seven (7) days after becoming payable (whether formally demanded or not) it shall be lawful for the Landlord to claim an interest at twelve percent (12%) per annum. Amount unpaid calculated as from the date payable.

INTEREST FOR RENT ARREARS

c) The Landlord shall not be held to have waived the condition herein contained where the Landlord has permitted the Tenant to do any act in breach of conditions or stipulations herein and the Landlord shall always have the right to enforce such conditions or stipulations notwithstanding any antecedent breach of the conditions or stipulations permitted by the Landlord.

WAIVER OF DEFAULTS

d) Any notice required under this Agreement shall be sufficiently served if it is sent by post in a registered letter addressed to the Tenant or the Landlord or other person or persons to be served by name at their address specified herein or if left at the last known place of abode or business. A notice sent by registered letter shall be deemed to be given at the time when it ought in due course of post to be delivered at the address to which it is sent.

SERVICE OF NOTICE

e) Notwithstanding the tenancy is for a term of __ months from the date of commencement of this tenancy, it may only be determined after a period __ months by the Tenant giving to the Landlord: -

DIPLOMATIC CLAUSE

(PERSONAL LEASE)

(i) **TWO (2) CALENDAR MONTHS'** notice in writing of the Tenant's intention to end the tenancy or

(ii) **TWO (2) MONTHS'** rent in lieu of such notice

)

Please Initial	
Landlord	Tenant

if _____ is required to leave Singapore permanently on a job transfer or if for any cause whatsoever he/she shall be ordered to leave the Republic of Singapore. Documentary evidence of such transfer, cessation or order shall be required and such notice shall be deemed to have commenced on such date as the Landlord shall have actually received such evidence.

For clarity, should the Tenant wish to exercise the diplomatic clause before the __th month of this lease, the Tenant will compensate the Landlord, on an upfront basis, all the rent payable right up to the ___th month of this lease. This way, under all circumstances, the Landlord will always receive a minimum of ___ months' worth of rent from this Tenancy Agreement.

f) That the Landlord will on the written request of the Tenant made not less than **TWO (2) months** before the expiration of the tenancy hereby created and if there shall not at the time of such request be any existing breach or non-observance of any of the agreements and stipulations on the part of the Tenant herein contained at the expense of the Tenant grant to the Tenant a tenancy of the said Premises for a further term of **ONE (1) year** from the expiration of the tenancy hereby created upon the same terms and conditions except for this option and except for the monthly rent and hiring charges contained herein which shall be that as agreed to by the parties.

OPTION TO RENEW

g) The Landlord has agreed that should the Tenant renew or exercise the option to extend the Tenancy, the Landlord shall pay to the SRI Pte Ltd a further commission equivalent to half's month rent for every one-year lease or pro-rated for any part thereof plus prevailing GST.

BROKERAGE FEES DUE TO RENEWAL OF LEASE

h) Upon expiration of the said term or earlier determination, the Tenant shall deliver the said Premises to the Landlord after a joint inspection thereof by both parties, and thereafter the Tenant shall not be under any liability whatsoever to the Landlord nor shall the Landlord have any claim against the Tenant in respect of any damages to the said Premises other than for damage ascertained at the said joint inspection.

JOINT INSPECTION

i) The waiver by either party of a breach or default of any of the provisions in this Agreement shall not be constructed as a waiver of any succeeding breach of the same or other provisions nor any delay or omission on the part of either party to exercise or avail itself of any right that it has or may have herein, operates as a waiver of any breach or default of the other party.

DEFAULT OF THE PROVISIONS

j) In case the said Premises or any part thereof shall at any time during the said tenancy be destroyed or damaged by fire, lightning, riot, explosion or any other inevitable cause so as to be unfit for occupation and use then and in every such case (unless the insurance money shall be wholly or partially irrecoverable by reason solely or in part of any act of default of the Tenant) the rent hereby reserved or a just and fair proportion thereof according to the nature and extent of the damage sustained shall be suspended and cease to be payable in respect of any period while the said Premises shall continue to be unfit for occupation and use by reason of such damage.

UNTENANTABILITY OF PREMISES LEADING TO SUSPENSION OF RENT

k) In case the said Premises shall be destroyed or damaged as in Clause 6(j) herein and if the Landlord or the Tenant so thinks fit shall be at liberty to terminate the tenancy hereby created by notice in writing and upon such notice being given the term hereby created shall absolutely cease and determine but without prejudice to any right of action of the Landlord in respect of any antecedent breach of this Agreement by the Tenant.

LEADING TO TERMINATION

Please Initial	
Landlord	Tenant

l) Notwithstanding anything herein contained the Landlord shall be under no liability to the Tenant, members of the Tenant's, Tenant's immediate family or to any other person who may be permitted to enter, occupy or use the said Premises or any part thereof for accidents, happenings or injuries sustained or for loss of or damage to property goods or chattels in the said Premises or any part thereof whether arising from the defects in the said Premises or the negligence of any servant or agent of the Landlord or otherwise and the Tenant shall keep the Landlord fully indemnified against all claims, demands, actions, suits, proceedings, orders, damages, costs, losses and expenses of any nature whatsoever which the Landlord may incur or suffer in connection with the aforesaid.

TO INDEMNIFY THE LANDLORD

m) In the event of Enbloc Redevelopment the Landlord shall be at liberty by giving three (3) months' notice in writing to determine the tenancy hereby created and shall refund the deposit to the tenant without interest.

ENBLOC RE-DEVELOPMENT

n) In the event of a sale of the said Premises, the Landlord shall be entitled to assign the benefit of this Agreement including his obligation to refund the security deposit paid under Clause (3) to the purchaser of the said Premises.

SALE OF PREMISES

o) It is expressly understood by the Landlord that the commission plus GST paid by the Landlord to **SRI PTE LTD**, as Agent in this transaction, has been fully earned and therefore no claim shall be made by the Landlord against **SRI PTE LTD** for a refund of the commission should the Tenant prematurely terminate the tenancy herein or for any other reasons. The Tenant shall undertake to reimburse the Landlord on a pro-rata basis, the commission paid to the agents as is equal to the unexpired portion of the tenancy or lease herein divided by the full term thereof and multiplied by the commission. The Landlord shall be entitled to deduct such refund from the tenancy deposit held by the Landlord.

COMMISSION

p) The stamp duty on the original and duplicate of this Agreement shall be borne by the Tenant and paid prior to obtaining the keys to the Premises**.**

STAMP DUTY

q) The law applicable in any action arising out of this lease shall be that governing the Republic of Singapore and the parties hereto submit themselves to the jurisdiction of the law of Singapore.

GOVERNING LAW

r) The Landlord and/or his representing Salesperson shall conduct the required diligence checks and ensure that the prospective Tenant and/or the occupiers of the Premises are lawful residents of the Republic of Singapore. The Landlord covenants with the Tenant that where any of the occupiers are foreigners, the Landlord and/or his representing Salesperson shall personally verify from original documentation that they have a valid employment pass, work permit, travel document or other papers granted by the Immigration & Checkpoints Authority, Ministry of Manpower or other relevant government authorities.

COMPLIANCE WITH IMMIGRATION ACT

s) The Tenant shall produce the following documents and provide copies for retention to the Landlord and/or his representing Salesperson:

DOCUMENTS FOR RETENTION

(i) the original identity cards/passports and other relevant documents of all occupiers evidencing their legal entry into Singapore for their stay/ work before the commencement of this Agreement; and

(ii) the original identity cards/passports and other relevant documents of all occupiers evidencing the renewal or extension of their lawful stay in Singapore before the expiry thereof.

Please Initial	
Landlord	Tenant

t) In respect of any change in the particulars, immigration status or employment status of the Tenant or the occupier(s), the Tenant shall inform the Landlord of the same in writing not less than fourteen (14) days prior to such change. If the change cannot be anticipated, the Tenant shall inform the Landlord as soon as practicable upon knowledge of such change.

CHANGE IN PERSONAL PARTICULARS, IMMIGRATION OR EMPLOYMENT STATUS

u) Where the Tenant notifies the Landlord of a change in occupiers of the Premises, the Landlord is required to conduct all the necessary due diligence checks on the original NRIC/passports/passes/permits, acquire copies and conduct validity checks of the passes and identity documents of the new occupiers.

CHANGE IN OCCUPIERS

AS WITNESS the hands of the parties hereto the day and year first above written: -

Landlord 1:

_____
Name:
NRIC/Passport No.:

Tenant 1:

_____
Name:
NRIC/Passport No.:

Landlord 2:

_____
Name:
NRIC/Passport No.:

Tenant 2:

_____
Name:
NRIC/Passport No.:

Witness:

_____
Name:
NRIC/Passport No.:

Witness:

_____
Name:
NRIC/Passport No.:

List of occupiers

Name of occupiers	Passport No.	FIN No./Expiry Date	Company Name/Tel No.

The Landlord: Please inspect the original employment or work pass, original travel and identification documents of all foreign tenants/occupiers and NRIC/Birth Certificates of all Singaporeans/PRs and retain copies.

The Tenant: The Tenant shall be responsible to ensure that the number of Tenants and occupiers shall not exceed the maximum occupants allowed by the authorities.

Please Initial	
Landlord	Tenant